No. 25-238, 25-566

In the Supreme Court of the United States

CUTBERTO VIRAMONTES, *et al.*,
Petitioners,
v.
COOK COUNTY, ILLINOIS, *et al.*,
Respondents.

EDDIE GRANT, JR., *et al.*,
Petitioners,
v.
RONNELL HIGGINS, IN HIS OFFICIAL CAPACITY AS COMMISSIONER OF THE CONNECTICUT DEPARTMENT OF EMERGENCY SERVICES AND PUBLIC TRANSPORTATION, *et al.*,
Respondents.

On Writs of Certiorari to the United States Courts of Appeals for the Seventh and Second Circuits

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QUESTION PRESENTED

Whether the Second and Fourteenth Amendments guarantee the right to possess AR-15 platform and similar semiautomatic rifles.

PARTIES TO THE PROCEEDING

In *Viramontes v. Cook County*: Petitioners Cutberto Viramontes, Christopher Khaya, Firearms Policy Coalition, Inc., and Second Amendment Foundation were plaintiffs before the district court and the plaintiffs-appellants in the court of appeals.

Respondents Cook County, Ill., Toni Preckwinkle, in her official capacity as County Board President and Chief Executive Officer of Cook County, and Thomas Dart, in his official capacity as Sheriff of Cook County were defendants before the district court and defendants-appellees in the court of appeals. Respondent Eileen O'Neill Burke, in her official capacity as State's Attorney for Cook County, was substituted in as a defendant-appellee by the court of appeals after she became State's Attorney for Cook County, replacing Kimberly M. Foxx who was a defendant and then a defendant-appellee in her official capacity. *See* Order, *Viramontes v. County of Cook*, No. 24-1437 (7th Cir. June 6, 2025), Doc. 59.

In *Grant v. Higgins*: Petitioners Eddie Grant, Jr., Jennifer Hamilton, Michael Stiefel, Connecticut Citizens Defense League, Inc., and Second Amendment Foundation, Inc. were the plaintiffs before the district court and the plaintiffs-appellants in the court of appeals.

Respondent Ronell Higgins, in his official capacity as Commissioner of the Connecticut Department of Emergency Services and Public Protection, is substituted as a defendant in this case for James Rovella, who previously held that position and was defendant

in the district court and defendant-appellee in the court of appeals.

Respondents John P. Doyle, Jr., in his official capacity as State's Attorney for the New Haven Judicial District, Sharmese L. Walcott, in her official capacity as State's Attorney for the Hartford Judicial District, and Paul J. Narducci, in his official capacity as State's Attorney for the New London Judicial District, were the defendants before the district court and the defendants-appellees in the court of appeals.

Respondents were joined as defendants in the district court by Edward Lamont, Jr., in his official capacity as Governor of Connecticut, Patrick Griffin, in his official capacity as Chief State's Attorney, Margaret E. Kelly, in her official capacity as State's Attorney for the Ansonia/Milford Judicial District, David R. Applegate, in his official capacity as State's Attorney for the Danbury Judicial District; Joseph T. Corradino, in his official capacity as State's Attorney for the Fairfield Judicial District, David R. Shannon, in his official capacity as State's Attorney for the Litchfield Judicial District, Michael A. Gailor, in his official capacity as State's Attorney for the Middlesex Judicial District, Christian Watson, in his official capacity as State's Attorney for the New Britain Judicial District, Paul J. Ferencek, in his official capacity as State's Attorney for the Stamford Judicial District, Matthew C. Gedansky, in his official capacity as State's Attorney for the Tolland Judicial District, Maureen Platt, in her official capacity as State's Attorney for the Waterbury Judicial District, and Anne F. Mahoney, in her official capacity as State's Attorney for the Windham Judicial District. The district court dismissed these defendants, and that order was not appealed. *See*

Order, *Grant v. Lamont*, 3:22-cv-01223 (Aug. 23, 2023), Doc. 63 at 8.

CORPORATE DISCLOSURE STATEMENT

Firearms Policy Coalition, Inc., has no parent corporation, and there is no publicly held corporation that owns 10% or more of its stock.

Second Amendment Foundation, Inc. has no parent corporation, and there is no publicly held corporation that owns 10% or more of its stock.

Connecticut Citizens Defense League, Inc., has no parent corporation, and there is no publicly held corporation that owns 10% or more of its stock.

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INTRODUCTION

The question presented in this case is whether the Second and Fourteenth Amendments protect the right to possess AR-15 platform and similar semiautomatic rifles. The AR-15 is "the most popular rifle in the country." *Smith & Wesson Brands, Inc. v. Estados Unidos Mexicanos*, 605 U.S. 280, 297 (2025). In *District of Columbia v. Heller*, 554 U.S. 570 (2008), this Court held that the District of Columbia's ban on the possession of handguns violated the Second Amendment under the two-step, text-then-history analysis the Court later made "more explicit" in *New York State Rifle & Pistol Association, Inc. v. Bruen*, 597 U.S. 1, 31 (2022). *Heller* stands for the proposition that arms in common use cannot be banned. That principle requires the same result here as in *Heller*: AR-15 platform and similar semiautomatic rifles cannot be prohibited.

At the first step, *Heller* held that handguns are "Arms" within the plain text of the Second Amendment. "The 18th-century meaning" of that term "is no different from the meaning today," the Court explained: "weapons of offence, or armour of defence." *Heller*, 554 U.S. at 581 (citation omitted). Therefore, both at the Founding and today, "all firearms"—including, of course, handguns—"constituted 'arms.' " *Id*. (citation omitted).

At the second step, *Heller* determined that there was no historical justification for banning handguns. "The sorts of weapons protected," the Court concluded, "were those 'in common use at the time,' " a principle that was "fairly supported by the historical tradition of prohibiting the carrying of 'dangerous and unusual weapons.' " *Id*. at 627 (citations omitted). *Heller* had no difficulty concluding that handguns are in common

use and therefore protected. While the Court posited several reasons why "a citizen may prefer a handgun for home defense," the dispositive fact was that "whatever the reason, handguns are the most popular weapon chosen by Americans for self-defense in the home." *Id.* at 629. It did not matter, as a dissent emphasized, that handguns also are "the overwhelmingly favorite weapon of armed criminals." *Id.* at 682 (Breyer, J., dissenting). "The enshrinement of constitutional rights necessarily takes certain policy choices off the table," *id.* at 636, including prohibiting the possession of common arms. As the Court summarized its decision in *McDonald v. City of Chicago*, 561 U.S. 742 (2010), having "found that [the Second Amendment] right applied to handguns" because of their common use, it followed that "citizens must be permitted 'to use' " them, *id.* at 767–68 (citation omitted).

Applying *Heller*'s analysis to this case, the outcome is clear—"the people" have a right to possess AR-15 platform and similar semiautomatic rifles. As a matter of plain text, such rifles are arms, just as all other firearms are. As a matter of history, AR-15s and similar semiautomatic rifles cannot be banned because they are in common use. There are many reasons why law-abiding citizens may prefer them: they tend to be more accurate than handguns, to be lighter weight and to produce less recoil than other types of rifles or shotguns, and to have features such as pistol grips and telescoping stocks that promote accuracy and usability. But "[w]hatever the reason," *Heller*, 554 U.S. at 629, tens of millions of Americans choose them for lawful purposes like self- and home-defense, hunting, and target shooting, and they are legal to own in a large majority of states across the country. Indeed, in recent years they have been the second-best selling

type of firearm after handguns. Unless this Court is prepared to limit the Second Amendment's protection to handguns—an untenable proposition—*Heller*'s reasoning compels recognizing the same protection for AR-15 platform and similar semiautomatic rifles.

The courts below reached a different conclusion, but their holdings cannot be reconciled with *Heller*. The Seventh Circuit held that Cook County's ban does not implicate the plain text of the Second Amendment. Vir.Pet.App.4a–5a. Because the plain text covers all firearms, that holding was error. The Second Circuit, for its part, posited that Connecticut's ban is consistent with history because, in that court's view, AR-15 platform and similar semiautomatic rifles are "unusually dangerous weapons." Grant.Pet.App.37a. But under *Heller*, the decision whether a type of arm is too dangerous for ordinary Americans to possess is one that the people are entitled to make, not one that courts are empowered to make for them. That is the fundamental principle animating the common use test. Indeed, by any objective measure the handgun is the most dangerous weapon to modern society. If we were "constrained to use [Respondents'] rhetoric, we would have to say that *handguns* are the quintessential 'assault weapons' in today's society; they are used far more often than any other kind of gun in violent crimes." *Heller v. District of Columbia*, 670 F.3d 1244, 1290 (D.C. Cir. 2011) (*"Heller II"*) (Kavanaugh, J., dissenting). Thus, if the Second Circuit's analysis were correct, *Heller* could not have come out the way that it did.

Reversing the decisions below requires breaking no new ground; this Court need only apply its holding in *Heller*. But affirming the decisions below is

impossible without effectively overruling *Heller* and severely limiting the Second Amendment's protection. For these reasons and those that follow, this Court should reverse the decisions below, hold that the banned semiautomatic rifles are protected arms, and remand for entry of judgment for Petitioners.[1]

OPINIONS BELOW

The order of the court of appeals in *Viramontes* is unpublished but can be found at 2025 WL 1553896 and is reproduced at Vir.Pet.App.1a–5a. The opinion of the district court is unpublished but can be found at 2024 WL 897455 and is reproduced at Vir.Pet.App.6a–26a.

In *Grant*, the opinion of the court of appeals is reported at 153 F.4th 213 and is reproduced at Grant.Pet.App.1a–73a. The order of the district court is unpublished but can be found at 2023 WL 5533522 and is reproduced at Grant.Pet.App.74a–92a.

JURISDICTION

In *Viramontes*, the court of appeals issued its judgment on June 2, 2025. Petitioners timely filed their petition for a writ of certiorari on August 27, 2025.

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[1] *Viramontes* was an appeal from a final judgment, so reversing and remanding for entry of judgment is an appropriate resolution of that case. Although *Grant* was an appeal from the denial of a preliminary injunction, if this Court determines that AR-15 and similar semiautomatic rifles cannot be banned, there is nothing more to do below on the merits with respect to those firearms than enter judgment in favor of Petitioners. *See* 28 U.S.C. § 2106; *Grosso v. United States*, 390 U.S. 62, 71–72 (1968).

In *Grant*, the court of appeals issued its judgment on August 22, 2025. Petitioners timely filed their petition for a writ of certiorari on November 7, 2025.

This Court has jurisdiction over both cases under 28 U.S.C. § 1254(1).

STATUTORY AND REGULATORY PROVISIONS INVOLVED

The relevant constitutional provisions, statutory provisions, and county ordinances are reproduced at Vir.Pet.App.27a–41a and Grant.Pet.App.96a–122a.

STATEMENT OF THE CASE

I. The Rifle Is a Paradigmatic American Arm.

On June 14, 1775, the Continental Congress resolved "[t]hat six companies of expert riflemen, be immediately raised in Pennsylvania, two in Maryland, and two in Virginia," to assist in the siege of Boston. *See* JOURNALS OF THE CONTINENTAL CONGRESS 1774–1789, Vol. II. 1775 89 (1905). Writing to his wife Abigail, John Adams reported that Congress had approved raising "an excellent species of light infantry. They use a peculiar kind of musket, called a rifle. It has … grooves within the barrel, and carries a ball with great exactness to great distances. They are the most accurate marksmen in the world." CHARLES FRANCIS ADAMS, FAMILIAR LETTERS OF JOHN ADAMS AND HIS WIFE ABIGAIL ADAMS DURING THE REVOLUTION 65–66 (1876).

The Kentucky long rifle, named for the wilderness area where it was employed most effectively, was vastly more accurate than the traditional muskets of the time, a feature of critical importance to

frontiersmen who depended on them "to protect themselves and to provide themselves with food and clothing." Stephen V. Grancsay, *The Craft of the Early American Gunsmith*, 6 THE METROPOLITAN MUSEUM OF ART BULLETIN 54, 54 (1947), https://perma.cc/XS3G-74WS. Its accuracy resulted from the "rifling" of the barrel, which causes a bullet to spin through the air in a flatter, more accurate trajectory, *id.* at 56, similar to a football thrown in a tight spiral. Musket barrels were not rifled and their ammunition "tumbled in flight" rather than traveling in a controlled spin, *id.*, more akin to a knuckleball pitch.

The Kentucky long rifle would earn an international reputation for American marksmen in the war. At Saratoga, Tim Murphy, an American hunter and rifleman "made General Fraser, one of the ablest British officers, his special target and wounded him mortally at a range of over three hundred yards," *id.* at 54, an impossible range to even attempt with a musket, *see* H.C.B. RODGERS, WEAPONS OF THE BRITISH SOLDIER 93–94 (1960). And rifle technology continued to develop. In 1777, Joseph Belton demonstrated to members of the Continental Congress a repeating rifle, capable of firing multiple rounds without reloading, that could hold 16 rounds of ammunition. David B. Kopel & Joseph G.S. Greenlee, *The History of Bans on Types of Arms Before 1900*, 50 J. LEGIS. 223, 255 (2024). Meriwether Lewis carried a Girandoni repeating air rifle, with a 22-round tubular magazine, on his expedition with William Clark. JAMES B. GARRY, WEAPONS OF THE LEWIS AND CLARK EXPEDITION 100–01 (2012).

Throughout the 19th century, firearms technology continued its advance, with repeating firearms

becoming increasingly commonplace. Samuel Colt received his first patent for a revolver in 1836, with Remington and Smith and Wesson also introducing models before the Civil War, all to great commercial success. Kopel & Greenlee, *supra* at 270–72. In the Civil War, repeating rifles gained enormous popularity both as military weapons and as tools of self-defense. *Id.* at 278 (describing a Kentucky cavalry officer who used a 16-shot Henry Rifle to kill seven Confederates "who broke into his home and ambushed his family"). And in the postbellum period, the 18-shot Winchester Model 1866 and its successor the Winchester Model 1873—"The Gun That Won the West"—were produced in even greater numbers; by 1919 Winchester had made over 720,000 Model 1873s alone. *Id.* at 279–80.

Semiautomatic firearm technology dates to at least 1885. *Id.* at 282. In the first decade of the 20th century, popular models of semiautomatic rifles and shotguns hit the American market. *See Heller II*, 670 F.3d at 1287. Like their predecessors, they were quickly adopted by the American people. While there were a small number of laws enacted in the 1920s and 1930s that restricted semiautomatic firearms in some ways, none amounted to a general ban on the technology. Rather, most states that enacted laws only required permits, *see* 1933 Ohio Laws 189–90, banned possession for an "offensive or aggressive purpose," 1934 Va. Acts 137–39, restricted magazine capacity of firearms used in hunting, *see, e.g.*, 1920 N.J. Laws 67, ch. 31, § 9, or banned modifications of a firearm to increase its capacity, 1933 Minn. Laws ch. 190. Only two states banned possession of some semiautomatic firearms, and in each case the ban applied only to firearms above a certain ammunition capacity. *See* 1927 Mich. Pub. Acts 888–89 (16 rounds); 1927 R.I. Pub.

Laws 256 (12 rounds). These outliers were both repealed. *See* 1931 Mich. Pub. Acts 328, § 224; 1975 R.I. Pub. Laws 738, 738–39, 742. As this Court stated in *Staples v. United States*, semiautomatic rifles "traditionally have been widely accepted as lawful possessions." 511 U.S. 600, 612 (1994).

II. The AR-15 Is the Paradigmatic American Rifle.

The AR-15 is "the 'most popular rifle in American history.' " *Duncan v. Becerra*, 970 F.3d 1133, 1148 (9th Cir. 2020), *rev'd on reh'g en banc*, 19 F.4th 1087 (9th Cir. 2021). It was developed by the ArmaLite corporation, from which it takes its name ("AR" for "ArmaLite Rifle") and originally produced by Colt. David B. Kopel, *Machine Gun History and Bibliography*, 25 WYO. L. REV. 45, 103 (2025). When produced for the military as a "selective fire rifle" that can operate as an automatic "machinegun," it is most commonly known as an M-16. *Staples*, 511 U.S. at 603. As a civilian firearm, the AR-15 became available in a semiautomatic only form in the 1960s. *See* STEPHEN P. HALBROOK, AMERICA'S RIFLE: THE CASE FOR THE AR-15 14–15 (2022). Unlike the M-16, the semiautomatic AR-15, like all other semiautomatic firearms, fires just one round per pull of the trigger. *See Garland v. Cargill*, 602 U.S. 406, 416 (2024).

When Colt's patent lapsed in 1977, many companies began to produce rifles on the AR-15 platform—just as many companies produced telephones after the expiration of Alexander Graham Bell's patents in 1894. *See* Adam D. Thierer, *Unnatural Monopoly: Critical Moments in the Development of the Bell System Monopoly*, 14 CATO J. 267, 270 (1994). In the decades since, AR-15s have become enormously popular

"because they're accurate, light, portable and modular." FRANK MINITER, THE FUTURE OF THE GUN 46–47 (2014). AR-15s are "easy to shoot [with] little recoil, making [them] popular with women, [and] … so user friendly that a group called 'Disabled Americans for Firearms Rights' " recommends them for people who find it physically difficult to use other firearms. *Id.* AR-15s in their ordinary configuration also are less powerful than many older rifle designs. "The AR-15's smaller .223 … bullets strike with only one-fourth to one-half of the energy of most other centerfire rifle bullets," and "some states ban the use of .223 caliber rifles when hunting deer and other animals larger than varmints because their rounds lack sufficient power." E. Gregory Wallace, *"Assault Weapon" Lethality*, 88 TENN. L. REV. 1, 53–54 (2020).[2] These rounds also generally "penetrate less through building materials than common handgun and shotgun rounds." *Id.* at 38; *see also* HALBROOK, *supra* at 398. Indeed, the small size of the 5.56mm round (the military's equivalent of the .223 round) led to continuous complaints by soldiers of the M16 being underpowered, leading the Army in 2022 to announce plans to shift to a larger round. Kopel, *Machine Gun History*, *supra* at 105–06.

Although the federal government briefly experimented with restricting some configurations of semiautomatic rifles, *see* Violent Crime Control and Law

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[2] The "caliber" of a firearm is the measure of the diameter of the barrel, which determines the size of the ammunition it fires. *See* NICHOLAS J. JOHNSON, ET AL., FIREARMS LAW & THE SECOND AMENDMENT: REGULATION, RIGHTS, AND POLICY 1974 (3d ed. 2021), https://perma.cc/8FAR-5Q3D. ".223" ammunition is measured in inches while "5.56" ammunition is measured in millimeters, but they are functionally the same size. *Id.*

Enforcement Act, Pub. L. No. 103-322, § 110102, 108 Stat. 1796 (1994), that restriction was more limited than the bans at issue here, was in place for just ten years, and expired on its own terms over twenty years ago after its unpopularity was blamed for major congressional losses among its supporters, *see* Byron Tau, *Clinton: Don't trivialize gun culture*, POLITICO (Jan. 20, 2013), https://perma.cc/7TZD-C59D. Today, AR-15s and similar semiautomatic rifles are legal in the vast majority of states, and the AR-15 is recognized by ATF as "one of the most popular firearms in the United States." U.S. Bureau of Alcohol, Tobacco, Firearms & Explosives, *Definition of "Frame or Receiver" and Identification of Firearms*, 87 Fed. Reg. 24652 (2022).[3] Indeed, this Court recently observed that the AR-15 is "the most popular rifle in the country," and that it and similar semiautomatic rifles are both "widely legal and purchased by many ordinary

[3] Only 11 states generally ban the sale or possession of AR-15 platform and similar semiautomatic rifles, with some variation in how the class of banned rifles is defined, whether both possession and sale are banned, and whether possession of pre-ban firearms is grandfathered. *See* CAL. PENAL CODE §§ 30600, 30605; CONN. GEN. STAT. §§ 53-202b, 53-202c; DEL. CODE ANN. § 1466; 720 ILL. COMP. STAT. 5/24-1.9(b)–(c); MD. CODE CRIM. LAW § 4-303; MASS. GEN. LAWS ch. 140, § 131M(a); N.J. STAT. ANN. §§ 2C:39-5(f), 2C:58-5(a)–(b); N.Y. PENAL LAW §§ 265.02(7), 265.10; R.I. GEN. LAWS 11-47.2-2; VA. CODE ANN. § 18.2-287.4:1(B); WASH. REV. CODE § 9.41.390. Virginia's ban is enjoined statewide, *see* Amendment to June 29th Letter Opinion, *Santolla v. Katz*, Wash. Cnty. Cir. Ct., No. CL26-1139 (July 7, 2026), and the en banc Third Circuit has held New Jersey's ban unconstitutional, *Association of New Jersey Rifle & Pistol Clubs, Inc. v. Attorney General New Jersey*, 183 F.4th 211, 247 (3d Cir. 2026) ("*ANJRPC*").

consumers." *Smith & Wesson*, 605 U.S. at 283, 297. A variety of sources confirm the truth of these statements:

Firearm owner surveys. In 2022, Washington Post-Ipsos surveyed a random sample of 2,104 gun owners. *Poll of current gun owners* at 1, WASH. POST-IPSOS (2022), https://perma.cc/YSJ5-STNS. The survey asked respondents whether they owned AR-15-style rifles. Twenty percent answered yes. *Id*. This indicates that "about 16 million Americans own an AR-15." Emily Guskin *et al*., *Why do Americans own AR-15s?*, WASH. POST (Mar. 27, 2023), https://perma.cc/U6M6-QRDG. The survey also asked respondents *why* they owned AR-15s. Respondents answered that they did so, among other reasons, to protect self, family, and property (91%); for target shooting (90%); in case law and order break down (74%); and for hunting (48%). WASH. POST-IPSOS, *supra* at 1–2.

This year, Georgetown Professor William English conducted a survey that further demonstrates the popularity of AR-15 and similar semiautomatic rifles. *See* William English, *2026 National Firearms Survey: Results from the Second Wave, Including Current Ownership of AR-15 Style Rifles, Other "Assault Weapons," and Magazines that Hold More than 10 Rounds*, GEO. UNIV. RSCH. PAPER (Aug. 24, 2026), https://perma.cc/L535-DTQF. According to this survey of 16,888 gun owners, 30.0% of American gun owners, or approximately 26 million people, currently own at least one AR-15 or similar semiautomatic rifle. *Id.* at 37. Owners indicated that owned these rifles for, among other reasons, defense (83%), target shooting (65.1%), and hunting (50.2%). *Id.* at 41. The survey

also found that of the approximately 2.2 million defensive gun uses per year, 16.4% (or 360,800) involved rifles. *Id.* at 16. Professor English's overall defensive gun use findings are in line with other surveys, "with estimates of annual uses ranging from about 500,000 to more than 3 million." Alan I. Leshner et al., *Priorities for Research to Reduce the Threat of Firearm-Related Violence* 15, NAT'L RSCH. COUNCIL (2013), https://perma.cc/V36E-6KNC.

The National Shooting Sports Foundation (NSSF) also has asked gun owners why they value AR-15 and similar semiautomatic rifles. On a scale of 1 (not at all important) to 10 (very important), 2,185 AR- and AK-platform rifle owners[4] rated recreational target shooting at 8.7, home/self-defense at 8.3, and varmint hunting at 5.8. *See Modern Sporting Rifle: Comprehensive Consumer Report* at 18, NSSF (July 14, 2022), https://perma.cc/TAY2-CG2X. A different NSSF survey shows that on average more than 18 million Americans a year trained with an AR- or AK-platform rifles in recent years. *Firearm Ownership & Sport Shooting Participation in the U.S. in 2024* at 15, NSSF (2025), https://perma.cc/48DR-5R2W.

Firearm Dealer Surveys. NSSF regularly surveys retailers about the types of firearms they sell. *See, e.g.*, *2023 Firearms Retailer: Survey Report*, NSSF (2023), https://perma.cc/8DZL-CJ3J. In 2022, respondents indicated that the category of AR/modern sporting rifles (which includes AR-15 platform, AK-47 platform, and similar semiautomatic rifles) was the second highest-selling category, comprising 19.9% of

[4] The AK-47 rifle platform, in its semiautomatic, civilian configuration, is similar to the AR-15 and includes many of the same external design features.

sales. *Id*. at 9. And 2022 was no outlier. These rifles comprised between 17.7% and 20.3% of total firearm sales in each year with reported results from 2011 to 2022. *See 2021 Firearms Retailer: Survey Report*, NSSF (2021), https://perma.cc/N59Q-6UJJ; *2019 Firearms Retailer: Survey Report* at 10, NSSF (2019), *available at* Ex. to Prelim. Inj. Mot., *Miller v. Becerra*, No. 3:19-cv-1537 (S.D. Cal. Dec. 16, 2019), Doc. 22-13 at 109.

Firearm Production Data. NSSF also analyzed production data to determine how many AR-15, AK-47, and comparable rifles have been produced for the American market. *Firearm Production in the United States With Firearm Import and Export Data* at 7, NSSF (2025), https://perma.cc/TPZ7-3HHB. Its findings indicate that AR-15s and similar rifles accounted for approximately 20% of all domestic firearms produced for the American market from 2012 to 2023. *See id.* at 2, 7. And NSSF estimated that, from 1990 to 2023, more than 32 million of these rifles were produced for the American market. *See NSSF Releases Most Recent Firearm Production Figures*, NSSF (Jan. 15, 2026), https://perma.cc/KU3T-8QAQ.

* * *

Although this Court has made clear that criminal misuse is irrelevant to whether an arm in common use is protected, *see Heller*, 554 U.S. at 636, it is noteworthy that such misuse of these rifles is rare. In the decade from December 2015 to December 2025, rifles of any kind were used in an average of 425 homicides per year. *Crime Data Explorer: Expanded Homicide Offenses Characteristics in the United States*, U.S. DEP'T OF JUSTICE, FBI, https://perma.cc/EAX2-XK97 (fixed capture); https://bit.ly/4qGufNe (dynamic source).

Even if each of these homicides was carried out with a different AR-15 or similar rifle, that would mean just .001% of these rifles are used in a homicide in a typical year. Handguns are used in homicides over *sixteen times* more frequently than rifles. *See id*. (average of 7,087 handgun-based homicides annually). Homicides are also more likely to be carried out using knives or personal weapons such as hands or feet. *See id*. (average of 1,604 knife and 706 personal weapon homicides annually).

III. Connecticut's and Cook County's Bans.

While the laws at issue in these cases differ on the margins, they both seek to ban a class of semiautomatic rifles epitomized by the AR-15 and tendentiously labeled "assault weapons"—"a political term, developed by anti-gun publicists." *Stenberg v. Carhart*, 530 U.S. 914, 1001 n.16 (2000) (Thomas, J., dissenting) (citation omitted). "True assault rifles," unlike the rifles at issue here, "are selective fire weapons that will fire in a fully automatic mode." Memorandum from Assoc. Director (Compliance Operations), BATFE, to Director, BATFE, re: Report and Recommendation of the ATF Working Group on the Importability of Certain Semiautomatic Rifles (July 6, 1989).

Connecticut and Cook County ban the sale, transfer, or possession of so-called "assault weapons." CONN. GEN. STAT. §§ 53-202b, 53-202c; Code of Ordinances of Cook County, Ill., § 54-212(a)(1) ("C.C. Ord."). Both define the term by enumerating specific rifles, or "copies or duplicates thereof," including AR-15s, and by enumerating the features that, if present on a firearm, identify it as part of the proscribed class, CONN. GEN. STAT. § 53-202a(1)(A)(i), (B), (C), (E); C.C. Ord. § 54-211, *Assault weapon* (1), (7). The AR-15 is

broadly representative of the class of banned semiautomatic rifles. *See, e.g.*, *ANJRPC*, 183 F.4th at 238 (concluding that "all covered semi-automatic rifles share common features, regardless of the model or manufacturer" and were typified by the AR-15).

In Connecticut, the targeted features are: "a folding or telescoping stock"; "[a]ny grip of the weapon, including a pistol grip, a thumbhole stock, or any other stock, the use of which would allow an individual to grip the weapon, resulting in any finger on the trigger hand in addition to the trigger finger being directly below any portion of the action of the weapon when firing"; "[a] forward pistol grip"; "[a] flash suppressor"; and "[a] grenade launcher[5] or flare launcher." CONN. GEN. STAT. § 53-202a(1)(E).

Cook County targets a similar list of features: "[o]nly a pistol grip without a stock attached"; "[a]ny feature capable of functioning as a protruding grip that can be held by the non-trigger hand"; "[a] folding, telescoping, or thumbhole stock"; "[a] shroud attached to the barrel, or that partially or completely encircles the barrel, allowing the bearer to hold the firearm with the non-trigger hand without being burned, but excluding a slide that encloses the barrel"; and "[a] muzzle brake or muzzle compensator." C.C. Ord. § 54-211, *Assault weapon* ¶ (1).

Connecticut and Cook County separately proscribe magazines capable of holding more than ten rounds of ammunition. *See* CONN. GEN. STAT. §§ 53-

[5] The "grenade launcher" feature does not have meaningful impact on the types of firearms affected, as a "grenade launcher" is separately classified as a "destructive device" under federal law. 26 U.S.C. § 5845(f)(2).

202w(a)(1), (b); C.C. Ord. §§ 54-211, *Large-capacity magazine*; 54-212(a). Those bans are not challenged and are not at issue in these cases.

While the features and models identified in the two laws are not identical, it is evident that they are at core seeking to capture the same sort of firearm: semiautomatic rifles of a type epitomized by the AR-15. The AR-15 is banned by name in both Cook County and Connecticut, *see* C.C. Ord. § 54-211, *Assault weapon*, ¶ (7); CONN. GEN. STAT. § 53-202a(1)(A)(i), and in its ordinary setup it also displays many of the banned features. But these features are not, by and large, fundamentally different from the features found on non-banned rifles that are more traditionally styled.

For instance, compare the stocks on the two rifles pictured below, the first an AR-15 platform rifle and the second a Winchester 1873, "The Gun that Won the West":



JOHNSON, FIREARMS LAW, *supra* at 1996 (circling added).



Id. at 2000 (circling added). These stocks perform the same function—they provide a stable surface to brace

against the shooter's shoulder to help control and aim the firearm. *See* E. Gregory Wallace, *"Assault Weapon" Myths*, 43 S. ILL. U.L.J. 193, 232 (2018). The adjustable stock on the AR-15 differs from the Winchester's in allowing the stock to be lengthened or shortened depending on the size of the individual operating it—similar to a telescoping steering wheel in a car. *Id.* An adjustable AR-15 might be fitted to a husband and a wife of very different sizes, even if the same pair might struggle to find a Winchester that suits them both.

Both the Winchester and the AR-15 also provide the shooter with a grip with which the trigger hand can securely hold and aim the rifle. On the AR-15, this takes the form of a "pistol grip," whereas on the Winchester the hand grips a specially formed portion of the stock itself:



JOHNSON, *supra* at 1996.



Id. at 2000. The pistol grip on the AR-15 is perhaps the most visually striking feature of that firearm, but it is downstream of another difference. On the Winchester, the stock is angled downward from the barrel. This is not original or unique to the Winchester.

Wallace, *Myths*, *supra* at 229. For instance, the below image shows a Kentucky long rifle with a similarly angled stock:



Nancy McClure, *Treasures from Our West: "Kentucky" flintlock long rifle*, BUFFALO BILL CTR. OF THE WEST (July 4, 2015), https://perma.cc/9J7J-GN5G. The angled stock on the Winchester and the Kentucky long rifle is what allows that feature to double as the trigger-hand grip.

The AR-15 is built on a different design, with the barrel and stock forming a straight line. Wallace, *Myths*, *supra* at 229. This straight-line design helps in directing recoil. Whereas recoil in an angled-stock rifle is transferred back and then *down* to the shoulder of a shooter, in an AR-15 the recoil is transferred directly back. This reduces the tendency of the muzzle of the gun (the end of the barrel from which the bullet is released) to rise after it has been shot, facilitating aiming on subsequent shots. *Id.* But the design means that there is no easy way for a shooter to hold the stock with the trigger hand. The pistol grip solves that problem. *Id.*; *see also* David B. Kopel, *Rational Basis Analysis of "Assault Weapon" Prohibition*, 20 J. OF CONTEMP. L. 381, 396 (1994). Other AR-15s solve the problem through other means. For instance, the "thumbhole stock" pictured below incorporates a grip into the stock, but it works the same as a separate pistol grip:



Rifles – Banned Features at 8, NY SAFE, https://perma.cc/JD3M-GPYJ.

Moving further down the barrel both the AR-15 and the Winchester have a place for the non-trigger hand to hold onto and stabilize the barrel to facilitate aiming:



JOHNSON, *supra* at 1996.



Id. at 2000. The Winchester accomplishes this with a wooden handhold partially encircling the barrel, whereas the AR-15 pictured provides both a barrel shroud and a forward hand grip, but the function is no different between the two firearms. *See* Wallace, *Myths* at 229.

Finally, the "flash suppressor" or "muzzle brake," which is attached to the end of the barrel of the sample AR-15 is a feature without a direct analogue on the Winchester:



JOHNSON, *supra* at 1996. It is a technological advancement. Directing the dispersion of gases expelled from the muzzle, these items can assist with muzzle rise and reduce muzzle flash, which can blind a shooter defending himself in a nighttime setting. Wallace, *Myths, supra* at 233; Kopel, *Rational Basis*, *supra* at 396–97.

Importantly, none of these features make the rifle mechanically fire faster or with greater power. Wallace, *Lethality*, *supra* at 14–15. Features that *do* influence power, like the sort of ammunition a rifle takes, *id.* at 44–45, are not among those regulated by Connecticut or Cook County.

IV. Procedural History.

A. Viramontes v. Cook County.

1. On August 27, 2021, the *Viramontes* Petitioners filed their suit in the Northern District of Illinois, challenging Cook County's ban under the Second and Fourteenth Amendments. Vir.Pet.App.9a. Petitioner Viramontes wishes to own a Smith & Wesson M&P 15 rifle, an AR-platform rifle, and Petitioner Khaya wishes to own an IMI Galil semiautomatic rifle, which is based on the AK-47 platform. Vir.Pet.App.8a. The *Viramontes* Petitioners sought equitable relief and nominal damages. Vir.Pet.App.9a, 20a. The district court had subject matter jurisdiction under 28 U.S.C. §§ 1331 and 1343.

At the time *Viramontes* was filed, Seventh Circuit precedent foreclosed relief. *See Wilson v. Cook County*, 937 F.3d 1028 (7th Cir. 2019) (per curiam); *Friedman v. City of Highland Park*, 784 F.3d 406 (7th Cir. 2015). The *Viramontes* Petitioners sought judgment on the pleadings but acknowledged that the Court was bound to rule in favor of the County under binding precedent. Vir.Pet.App.10a. At the County's request, the district court declined to grant judgment and instead ordered the parties to engage in discovery. Vir.Pet.App.10a–11a.

2. Following discovery, and following this Court's decision in *Bruen*, the parties moved for summary judgment. Meanwhile, Illinois enacted a similar statewide semiautomatic rifle ban, *see* 720 ILL. COMP. STAT. 5/24-1.9, and the Seventh Circuit concluded, in an opinion that also covered Cook County's ban, that the restriction was likely constitutional. *See Bevis v. City of Naperville*, 85 F.4th 1175 (7th Cir. 2023). Despite these intervening developments, the district court ultimately granted summary judgment to the County on the basis that *Wilson* and *Friedman* were still good law and directly controlling. Vir.Pet.App.22a–23a, 26a.

3. The Seventh Circuit affirmed and issued a summary order, concluding that under *Bevis*, Petitioners had not adequately shown that the rifles that Cook County bans were "arms" within the plain text of the Second Amendment and declining to overrule *Bevis* as contrary to this Court's precedents. Vir.Pet.App.4a–5a.

B. Grant v. Higgins.

1. On June 28, 2023, the *Grant* Petitioners filed their operative complaint in the District of Connecticut. Grant.Pet.App.124a. The individual *Grant* Petitioners wish to possess AR-15 platform rifles. Grant.Pet.App.80a–82a. The district court had subject matter jurisdiction under 28 U.S.C. §§ 1331 and 1343.

The *Grant* Petitioners moved for a preliminary injunction, arguing that *Heller* and *Bruen* necessitated a finding that AR-15 platform and similar semiautomatic rifles are protected arms that cannot be banned consistent with the Second Amendment. Grant.Pet.App.74a. The district court denied the motion, holding they were not likely to succeed on the merits. *Id.* at 91a–92a. The court concluded that the Second Amendment's plain text was not implicated by Connecticut's law because the *Grant* Petitioners had not established that AR-platform rifles are in "common use for self-defense." *Id.* at 87a–89a. The district court also held that the ban was justified by the historical tradition of regulating "the types of weapons people could carry based on the new and dangerous characteristics of developing weapons technology." *Id.* at 90a. Lastly, it emphasized that the ban leaves open "alternative avenues for lawful possession of firearms for purposes of self-defense." *Id.* The court did not discuss any other preliminary injunction factor.

2. The Second Circuit affirmed. The panel expressed "confusion" about whether the banned rifles were arms within the meaning of the Second Amendment's text, and so it resolved the case at *Bruen*'s second step, based on its understanding of the historical scope of the Second Amendment-protected right. *Id.* at

35a. The panel conducted a less-than-usually demanding historical inquiry because it concluded AR-15s represented "dramatic technological changes" and implicated the unprecedented societal concern "of mass shootings resulting in ten or more fatalities." *Id.* at 42a. Applying a watered down standard, the panel held that these semiautomatic rifles are "dangerous and unusual," a category it defined to "encompass[] those arms that legislators determined were *unusually dangerous* because of their characteristics." *Id.* at 31a (emphasis in original). The Second Circuit emphasized that Connecticut still allows for "possession of many popular weapons, including semiautomatic weapons deemed to be less dangerous by the legislature." *Id.* at 50a.

Judge Nathan joined the majority opinion and authored a "concurrence" that was also joined by the full panel, setting forth her view that a weapon can be "dangerous and unusual" even if it is broadly used for lawful purposes. *Id.* at 67a–73a. She argued that the critical feature of historical laws restricting carrying "dangerous and unusual weapons" was "how 'terrifying' dangerous and unusual weapons are to the public" and that such weapons can be proscribed regardless of "the commonality of the weapons used to cause that terror." *Id.* at 71a-72a.

Addressing the remaining preliminary injunction factors, the Second Circuit declined to determine whether Petitioners had shown irreparable harm and determined that the balance of hardships favored the government based on "the government's interest in enforcing laws enacted by duly-elected legislators and in protecting the lives of its citizens" and "the thousands of firearms Connecticut's statutes leave

available, including semiautomatic handguns." *Id.* at 65-66a.

SUMMARY OF ARGUMENT

I. The plain text of the Second Amendment covers Petitioners' desired conduct because the challenged laws ban the possession of AR-15 platform and similar semiautomatic rifles, which are "arms."

The Seventh Circuit faulted the *Viramontes* Petitioners for failing to show that semiautomatic rifles such as the AR-15 are "arms." But it did so by relying on circuit precedent that improperly "smuggle[d] additional limits, drawn from our regulatory tradition, into the plain-text stage of the inquiry." *Wolford v. Lopez*, 146 S. Ct. 2032, 2054 n.1 (2026) (Barrett, J., concurring). As a matter of plain text, the term "arms" extends at a minimum to "all firearms," *Heller*, 554 U.S. at 581, and the Seventh Circuit was wrong to conclude otherwise.

II. A. At *Bruen* step two, there is no need for fresh historical analysis because *Heller* already has set the historical ground rules. "The sorts of weapons protected" are those "in common use," a limitation *Heller* deemed "fairly supported by the historical tradition of prohibiting the carrying of 'dangerous and unusual weapons.' " *Id.* at 627 (citations omitted).

Whatever common use may mean at the margins, AR-15s and similar semiautomatic rifles fit squarely within that category. Because "millions of Americans own AR-15s and … a significant majority of the States allow for possession of those rifles," *Snope v. Brown*, 145 S. Ct. 1534, at 1534 (2025) (Kavanaugh, J., statement respecting denial of certiorari), it follows that they "are commonly possessed by law-abiding citizens

for lawful purposes," *Caetano v. Massachusetts*, 577 U.S. 411, 420 (2016) (Alito, J., concurring). A "categorical ban of such weapons therefore violates the Second Amendment." *Id*.

B. The contrary historical test adopted by the Second Circuit is foreclosed by *Heller*. That test would empower courts to decide whether, *according to judges*, a particular type of arm is "unusually dangerous." But, under *Heller*, whether the danger posed by a particular type of firearm outweighs its utility for lawful purposes is a decision for the American people to make, and judges are not authorized to second-guess that decision. Indeed, this Court has "never relied on [its] own assessment of how useful an arm is for self-defense before deeming it protected." *Snope*, 145 S. Ct. at 1538 (Thomas, J., dissenting from denial of certiorari). Furthermore, by definition, an arm in common use cannot be unusually dangerous. Because the banned rifles are in common use, the Second Circuit's analysis fails on its own terms.

ARGUMENT

I. AR-15s and Similar Semiautomatic Rifles Are "Arms."

A. The Second Amendment provides, "A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed." U.S. CONST. amend. II. "As with any Second Amendment challenge," the first question for this Court to resolve is "whether the restrictions imposed by the challenged law[s] fall within the plain text of the Second Amendment." *Wolford*, 146 S. Ct. at 2047. "This inquiry entails three subsidiary questions." *Id.* at 2043. Does the law "apply to 'the

people,' … concern any form of 'Arms,' … [and] place any restrictions on either the 'keep[ing]' (*i.e.* possession) or the 'bear[ing]' (*i.e.*, carrying) of arms?" *Id.*

Here, the laws at issue undisputedly affect "the people" and place a restriction on (indeed, ban outright) the possession of AR-15 platform and similar semiautomatic rifles. Thus, the only disputed question is whether the bans "concern any form of 'Arms.' " *Id*. They clearly do.

"The 18th-century meaning [of 'Arms'] is no different from the meaning today." *Heller*, 554 U.S. at 581. "Arms" encompasses all "[w]eapons of offence or armour of defence," *i.e.*, "any thing that a man wears for his defence, or takes into his hands, or useth in wrath to cast at or strike another." *Id.* (citations omitted). It follows that "all firearms"—including AR-15s and similar semiautomatic rifles—"constitute[ ] 'arms.' " *See id.*

Since *Heller*, the Court has continued to make clear that firearms are arms under the plain text of the Second Amendment. In *Bruen*, for instance, the Court explained that the Second Amendment's text covers all "instruments that facilitate armed self-defense," regardless of when they were invented. 597 U.S. at 28. And most recently in *Wolford*, this Court equated the "plain text" meaning of "Arms" with "any weapon customarily used for offensive or defensive purposes." 146 S. Ct. at 2043 (citations omitted). "Because semi-automatic rifles are firearms, they are 'Arms' within the meaning of the Second Amendment." *ANJRPC*, 183 F.4th at 239.

B. The Seventh Circuit concluded otherwise by improperly importing historical limits into the plain-

text analysis. This is apparent from the Seventh Circuit's explanation for its holding: Petitioners, the Seventh Circuit reasoned, failed to "demonstrate that the text of the Second Amendment, *viewed through the lens of historical tradition*, protects the regulated conduct." Vir.Pet.App.4a (citing *Bevis*, 85 F.4th at 1192, 1194) (emphasis added). And it is abundantly clear in the cited passages in *Bevis* which explained that "the Arms the Second Amendment is talking about are weapons in common use for self-defense," *Bevis*, 85 F.4th at 1192, and therefore, at the plain-text stage, plaintiffs "have the burden of showing that the weapons addressed in the pertinent legislation are Arms that ordinary people would keep at home for self-defense," *id.* at 1194.

While common use is relevant to the question of whether a particular firearm *ultimately* is protected, it is irrelevant to whether it is an arm under the plain text. The Seventh Circuit reasoned that some firearms must not be covered by the plain text because *Heller* said that machineguns "can be dedicated exclusively to military use." *Id.* at 1193. But this is a non sequitur. Plain-text coverage does not mean that civilians are entitled to possess a protected arm; "if a challenged law falls within the plain text of the Second Amendment, it is *presumptively* unconstitutional," not definitively so. *Wolford*, 146 S. Ct. at 2044 (emphasis added). That is why *Heller* could say both that "the Second Amendment extends, prima facie, to all instruments that constitute bearable arms," 554 U.S at 582, and that the Second Amendment does not entail "a right to keep and carry any weapon whatsoever," *id.* at 626. Common use is not something that plaintiffs must prove to show the Second Amendment "extends, prima facie," to any type of firearm. *Id.* at

582. It is something that government defendants must *disprove* to justify a ban on any type of firearm.

This should have been plain under *Heller* and *Bruen*, but *Wolford* removed any doubt. Again, the Court in *Wolford* said that with respect to the plain text, the relevant question is, does a challenged law "concern any form of 'Arms,' *i.e.*, any weapon customarily used for offensive or defensive purposes." 146 S. Ct. at 2043. Whether an arm is in common use is irrelevant. At the first, plain-text step, "the question is simply whether a challenged law falls within the Second Amendment's 'plain text.' " *Id.* at 2049 (quoting *Bruen*, 597 U.S. at 24). Accordingly, "lengthy discussion of historical materials and precedents" is "out of place at *Bruen*'s first step." *Id.* Courts cannot "smuggle additional limits, drawn from our regulatory tradition, into the plain-text stage of the inquiry." *Id.* at 2054 n.1 (Barrett, J., concurring).

II. No Valid Historical Principle Justifies Connecticut's and Cook County's Bans.

A. Under *Heller*, Law-Abiding Citizens Have a Right to Possess AR-15s and Similar Semiautomatic Rifles.

1. Because AR-15s and similar semiautomatic rifles are covered by the plain text of the Second Amendment, the burden shifts to Respondents to "demonstrate that the[ir] regulation[s]" banning such rifles are "consistent with this Nation's historical tradition of firearm regulation." *Bruen*, 597 U.S. at 17. In a typical case, Respondents would need to establish the relevant tradition of regulation. In an arms ban case such as this one, however, *Heller* already has conducted the historical analysis and "decided that the 'in

common use' test governs." Mark W. Smith, *What Part of "In Common Use" Don't You Understand?: How Courts Have Defied* Heller *in Arms-Ban-Cases—Again*, PER CURIAM, HARV. J.L. & PUB. POL'Y (Sep. 27, 2023), https://perma.cc/Q6CA-CTH5.

Heller was just like this case, as it concerned a ban on a type of firearm. After conducting its textual analysis, *Heller* turned its attention to history. Despite the Second Amendment's expansive phrasing, the Court explained that the Amendment does not protect "a right to keep and carry any weapon whatsoever in any manner whatsoever and for whatever purpose." 554 U.S. at 626. Rather, *Heller* stated the right is subject to historical limitations and, as relevant here, concluded "that the sorts of weapons protected [are] those in common use." *Id*. at 627 (quotation marks omitted). The Court found this principle both "fairly supported by the historical tradition of prohibiting the carrying of dangerous and unusual weapons," *id*. (quotations marks omitted), and consonant with the fact that "the traditional militia was formed from a pool of men bringing arms 'in common use at the time' for lawful purposes like self-defense," *id*. at 624. Thus, while the government may be able to ban arms that are "highly unusual in society at large" and "not typically possessed by law-abiding citizens for lawful purposes," *id*. at 625, 627, law-abiding citizens have an absolute right to possess arms in common use for lawful purposes.

In *McDonald*, the Court reiterated what it held in *Heller*. *Heller*, the Court explained, "found that [the Second Amendment] right applies to handguns because they are 'the most preferred firearm in the nation to "keep" and use for protection of one's home and

family.' " *McDonald*, 561 U.S. at 767 (quoting *Heller*, 554 U.S. at 628). And because handguns were in common use in this way, the Court held that "citizens must be permitted to use handguns for the core lawful purposes of self-defense." *Id.* at 768 (quotation marks and brackets omitted).

Following *McDonald*, in *Caetano v. Massachusetts*, 577 U.S. 411 (2016) (per curiam), the Court summarily vacated a decision of the Supreme Judicial Court of Massachusetts that departed from the common use test. The Massachusetts court had held that stun guns are not protected by the Second Amendment because they "were not in common use at the time of the Second Amendment's enactment" and are not "readily adaptable to use in the military." *Id.* at 411–12 (quotation marks omitted). These rationales, the Court explained, "contradict[] this Court's precedent," because *Heller* had expressly stated that the Second Amendment reaches arms "that were not in existence at the time of the founding," and had also rejected the notion that "only those weapons useful in warfare are protected." *Id.* at 412 (quotation marks omitted). While the per curiam majority focused on the Massachusetts' court's errors, Justice Alito in concurrence identified the test that court should have applied: "whether stun guns are commonly possessed by law-abiding citizens for lawful purposes today." *Id.* at 420 (Alito, J., concurring).

Finally, in *Bruen*, this Court relied on the common use principle for three distinct purposes. First, the Court used it to illustrate how the Court in *Heller* had "relied on the historical understanding of the Amendment to demark the limits on the exercise of the right." *Bruen*, 597 U.S. at 21. "For example," the Court

explained, "we found it 'fairly supported by the historical tradition of prohibiting the carrying of "dangerous and unusual weapons" ' that the Second Amendment protects the possession and use of weapons that are 'in common use at the time.' " *Id*. (citation omitted). Second, the Court held that the handguns at issue in the case were protected arms—not just presumptively protected, but protected full stop, as a matter of text and history—because it was undisputed that "handguns are weapons 'in common use' today for self-defense." *Id*. at 32. Third, the Court used the common use principle to distinguish colonial laws that arguably barred the carry of handguns. "[E]ven if these colonial laws prohibited the carrying of handguns because they were considered 'dangerous and unusual weapons' in the 1690s," the Court reasoned, "they provide no justification for laws restricting the public carry of weapons that are unquestionably in common use today." *Id*. at 47.

2. *Heller* not only establishes the common use principle but also illustrates how the principle is to be applied. The key insight is that "[o]ur constitution allows the American people … to decide which weapons are useful for self-defense," and therefore courts are to "look[] to the standards set 'by American society' " when determining whether an arm is in common use. *Snope*, 145 S. Ct. at 1537–38 (Thomas, J., dissenting). "The scope of the right to bear arms cannot turn on judicial speculation about the American people's self-defense needs." *Id*. at 1538.

Heller is clear that the common use test focuses on the choices of the American people. This is most apparent in the Court's rejection of the argument "that it is permissible to ban the possession of handguns so

long as the possession of other firearms (*i.e.*, long guns) is allowed." 554 U.S. at 629. "It is enough to note," the Court responded, "that the American people have considered the handgun to be the quintessential self-defense weapon." *Id.* The Court identified "many reasons that a citizen may prefer a handgun for home defense," *id*, but those reasons ultimately were not dispositive. What mattered was that "*[w]hatever the reason*, handguns are the most popular weapons chosen by Americans for self-defense in the home, and a complete prohibition of their use is invalid." *Id.* (emphasis added).

Since *Heller*, Justices of this Court who have addressed common use have continued to emphasize the choices of the American people. In *Friedman v. City of Highland Park*, 577 U.S. 1039, 136 S. Ct. 447 (2015), for example, Justice Thomas addressed a semiautomatic rifle ban by a different Illinois municipality. The ban was "highly suspect," Justice Thomas reasoned, because "[r]oughly five million Americans own AR-style semiautomatic rifles," and "[t]he overwhelming majority of citizens who own and use such rifles do so for lawful purposes." *Id.* at 449 (Thomas, J., dissenting from denial of certiorari). "Under our precedents," Justice Thomas concluded, "that is all that is needed for citizens to have a right under the Second Amendment to keep such weapons." *Id.* In *Caetano*, Justice Alito too looked to the choices of the American people to find stun guns in common use. The Massachusetts court below had noted that "the number of Tasers and stun guns is dwarfed by the number of firearms." *Caetano*, 577 U.S. at 420 (Alito, J., concurring) (quotation marks omitted). But "[t]he more relevant statistic," Justice Alito explained, "is that hundreds of thousands of Tasers and stun guns have been sold to

private citizens, who it appears may lawfully possess them in 45 States." *Id.* (quotation marks omitted). Thus, "[w]hile less popular than handguns, stun guns are widely owned and accepted as a legitimate means of self-defense across the country," and a "categorical ban of such weapons therefore violates the Second Amendment." *Id.* As a final example, in *Snope*, Justice Kavanaugh, addressing Maryland's semiautomatic rifle ban, reasoned that, "[g]iven that millions of Americans own AR-15s, and that a significant majority of the States allow possession of those rifles, petitioners have a strong argument that AR-15s are in 'common use' by law-abiding citizens and therefore are protected by the Second Amendment under *Heller*." *Snope*, 145 S. Ct. at 1534 (Kavanaugh, J., statement respecting denial of certiorari).

3. Outside of the Second Amendment context, the Court also has looked to the choices of the American people to identify common arms. In *Staples*, for instance, this Court was confronted with the question of whether a semiautomatic AR-15 rifle was, like "narcotics and hand grenades," the sort of item whose "potentially harmful" characteristics should put its owner on notice that its mere possession was likely "not an innocent act." 511 U.S. at 610–12 (quotation marks omitted). In rejecting that notion, the Court noted that while it may be that "certain categories of guns—no doubt including the machineguns, sawed-off shotguns, and artillery pieces that Congress has subjected to regulation"—were of "the same quasi-suspect character" as hand grenades, that was not the case for "commonplace and generally available" firearms. *Id.* at 611–12. Such firearms "traditionally have been widely accepted as lawful possessions." *Id.* at 612. Ordinary semiautomatics, including the paradigmatic

AR-15 rifle, were of this latter type, the Court concluded, noting that "[r]oughly 50 percent of American homes contain at least one firearm of some sort, and in the vast majority of States buying a shotgun or rifle is a simple transaction." *Id.* at 613–14.

The Court employed a similar mode of analysis in *Smith & Wesson*. There, the question was whether production of so-called "assault weapons," including "AR-15 rifles [and] AK-47 rifles," was sufficient to justify a charge of "assisting in criminal acts just because Mexican cartel members like those guns." 605 U.S. at 297–98. In rejecting that contention, this Court—in a unanimous opinion—again turned to the same familiar metrics, explaining that "those products are both widely legal and bought by many ordinary consumers," and it noted that the AR-15 itself "is the most popular rifle in the country." *Id.* at 297.

4. Under this Court's precedents, there can be no doubt that AR-15 platform and similar semiautomatic rifles are in common use and therefore protected by the Second Amendment.

While members of this Court have tended to focus on the number of arms possessed by the American people and the number of states permitting such arms, every available metric indicates that these rifles are overwhelmingly common. Surveys indicate that tens of millions of Americans own them, with the most recent data suggesting approximately 26 million individual Americans own at least one such rifle, with approximately 22 million choosing an AR-15 platform rifle specifically. *See,* English*, supra* at 37; *see also, e.g.*, WASH. POST-IPSOS, *supra* at 1 (concluding that 20% of gun owners, or 16 million Americans, owned AR-15s in 2022). Dealers report that AR-15 platform

and similar semiautomatic rifles are second only to semiautomatic handguns in popularity and account for approximately twenty percent of firearm sales in the country. NSSF, *2023 Retailer Survey*, *supra* at 9. Production data shows that over the last two decades, on average, well over a million such firearms have been produced for the American market annually. NSSF, *Firearm Production*, *supra* at 7.

Additionally, AR-15 platform and similar semiautomatic rifles are legal in the vast majority of the states, and just like the handguns at issue in *Heller*, Americans possess them for lawful purposes such as self-defense. *See* WASH.-POST IPSOS, *supra* at 2 (91% of owners cited protection of self, family, and property as a reason for possessing a modern semiautomatic rifle); English, *supra* at 37 (83% of owners cited defense as a reason). They are also popular for target shooting and hunting, *see, e.g.*, English, *supra* at 41, and as insurance for the breakdown of law and order, *see* WASH.-POST IPSOS, *supra* at 2. And although this Court has expressly rejected consideration of criminal misuse of common arms, these rifles are rarely used in crime. If every one of the 425 rifle murders committed on average per year in the United States were committed with an AR-15, that would still implicate only a minute fraction of a percent of such rifles.

The data therefore compels the conclusion that the semiautomatic rifle restrictions at issue in these cases target arms that are in common use today. That is unsurprising, given this Court's recognition in *Staples* that semiautomatic firearms, including AR-15 platform rifles, are "commonplace and generally available" weapons that "traditionally have been widely accepted as lawful possessions," 511 U.S. at 612–14, and

its further acknowledgment in *Smith & Wesson*, that rifles such as the AR-15 are "both widely legal and bought by many ordinary consumers," 605 U.S. at 297. Any conclusion that the banned rifles are not in common use would be impossible to square with *Staples* and *Smith & Wesson*, in addition to this Court's Second Amendment precedents.

B. The Second Circuit's Contrary Approach Is Inconsistent with Text, History, and Precedent.

The Second Circuit below, unlike the Seventh, reached the historical analysis and resolved the case on *Bruen*'s second step. But its reasoning was in direct conflict with *Heller* and irreconcilable with our Nation's history of firearm regulation.

1. In conducting its historical analysis, the Second Circuit did not dispute that the banned rifles are in common use. Instead, the court rejected the common use test altogether. "Even assuming, *arguendo*, that the desired firearms and magazines are 'typically possessed' and 'in common use' for lawful purposes,' " the court reasoned, that would not be " 'sufficient' for finding that possessing the regulated weapons is protected by the Second Amendment." Grant.Pet.App.29a-30a. That conclusion cannot be reconciled with this Court's precedents, and this Court could reject the Second Circuit's holding on that basis alone.

The Second Circuit claimed that Petitioners were "distort[ing] the precedents on which their argument relies," *id.* at 30a, but, respectfully, it was the Second Circuit doing the distorting, not Petitioners. The court insisted that this Court's "cases do not hold that the

Second Amendment *necessarily* protects *all* weapons in common use," and therefore "[t]hey do not shield popular weapons from review of their potentially unusually dangerous character." *Id*. But this Court's cases do exactly that. In *Heller*, for example, the Court held that handguns cannot be banned precisely because they "are the most popular weapon chosen by Americans for self-defense in the home." 554 U.S. at 629. The popularity of handguns was sufficient to resolve the case. The Court did not go on to examine whether handguns nevertheless had an "unusually dangerous character," Grant.Pet.App.30a, despite Justice Breyer's dissent arguing just that, i.e., that handguns have "attributes" that "make them particularly dangerous," *id.* at 711 (Breyer, J., dissenting). The issue was simply irrelevant. *Bruen* was much the same. There, because there was no "dispute that handguns are weapons 'in common use' today for self-defense," there was nothing more the Court needed to do to determine that the arms at issue were protected. 597 U.S. at 32.

The Second Circuit further found it relevant that Connecticut's ban "leave[s] open many lawful alternatives to Connecticut residents for armed self-defense." Grant.Pet.App.46a. This reasoning too is foreclosed by *Heller*. There, D.C. emphasized that its handgun ban allowed its citizens to possess shotguns and rifles, "which some gun rights proponents contend are actually the weapon of choice for home defense." Br. for Pet'rs, 2008 WL 102223, at *54–55, *District of Columbia v. Heller*, No. 07-290 (Jan. 4, 2008) (*citing* Clint Smith, *Home Defense*, GUNS MAG. at 50, July 2005) (endorsing semiautomatic rifles for home defense). The Court rejected this argument, reasoning that "it is no answer to say, as petitioners do, that it is

permissible to ban the possession of handguns so long as the possession of other firearms (*i.e.*, long guns) is allowed." *Heller*, 554 U.S. at 629. This maneuver is no sounder when rifles are being banned.

The Second Circuit acknowledged that its reasoning was in tension with Justice Alito's concurrence in *Caetano* stating that "[a] weapon may not be banned unless it is *both* dangerous *and* unusual," 577 U.S. at 417 (Alito, J., concurring), but it discounted that opinion as a "non-binding concurrence," Grant.Pet.App.32a. *Caetano* cannot be dismissed so easily, however. As Justice Alito explained, "*as the* per curiam *opinion recognizes*, this is a conjunctive test." *Caetano*, 577 U.S. at 417 (Alito, J., concurring) (emphasis added). The *per curiam* did so by summarily vacating the Massachusetts Supreme Judicial Court's judgment after concluding that the court's assessment of whether stun guns are "unusual" contradicted *Heller*, *see id.* at 412, without addressing the court's separate conclusion that stun guns are "dangerous," *see id.* at 417–18 (Alito, J., concurring).

The Second Circuit additionally protested that the common use test would turn the analysis into a "trivial counting exercise" that could "lead to absurd consequences" such as "unusually dangerous arms like the … W54 nuclear warhead … gain[ing] constitutional protection merely because they become popular before the government can sufficiently regulate them." Grant.Pet.App.30a. (cleaned up). Here too, the Second Circuit's reasoning already has been rejected by the Court, as it recycles the argument on this point made by Justice Breyer in dissent. *See Heller* 554 U.S. at 720–21 (Breyer, J., dissenting).

The Second Circuit also is wrong that the common use test turns the analysis into a trivial counting exercise. Rather, the key question is whether *the people* have deemed an arm to be a dangerous and unusual weapon. To be sure, in answering that question, the number of a type of arm owned by the American people may be highly relevant. But that is because when, as in this case, tens of millions of Americans across the country own a type of arm for lawful purposes, it is impossible to conclude that the people have determined the arm is so dangerous it is unfit for use by ordinary citizens. Absurd hypotheticals about nuclear weapons are just that—absurd. "Even if some nuclear warheads are small enough for an individual to carry, no reasonable person would think to use one to defend himself." *Snope*, 145 S. Ct. at 1538 (Thomas, J., dissenting). "To fend off the fantastical threat of Americans lobbing nuclear warheads at one another," the Second Circuit "has allowed the very real threat of the government depriving Americans of the rifle that they most favor for protecting themselves and their families." *Id.*

By insisting that there is still work to be done beyond common use, the Second Circuit revealed the true principle at work in its reasoning—that even though there are some arms that *the people*, by their actions, have determined are appropriate to possess and use, there nevertheless remains room for *judges* to override them if *judges* think that a common type of arm is "too dangerous." This reasoning is fundamentally incompatible with this Court's Second Amendment jurisprudence. As *Heller* explained, "[t]he very enumeration of the right takes out of the hands of government—even the Third Branch of Government—the power to decide on a case-by-case basis

whether the right is *really worth* insisting upon." 554 U.S. 634. The Court therefore has rejected means-end-scrutiny in favor of an approach focused on history, and it has made clear that courts cannot "engage in independent means-end scrutiny under the guise of" historical inquiry. *See Bruen*, 597 U.S. at 29 n.7. Here, the relevant historical principle is that arms that are in common use cannot be banned. Courts therefore have no basis for considering "difficult empirical" questions of the type that the Second Circuit's approach raises, *McDonald*, 561 U.S. at 791 (plurality), such as "what sorts of guns are necessary for self-defense," *id.* at 923 (Breyer, J., dissenting), how dangerous AR-15 platform and similar semiautomatic rifles are relative to other firearms, and the extent to which the attributes of those rifles make them attractive to criminals. This kind of interest balancing is foreclosed by *Heller* and *Bruen*. Rather, it is the "balance struck by the traditions of the American people" that bind the courts. *Bruen*, 597 U.S. at 26 (em-dash omitted).

2. Having rejected *Heller*'s common use standard, the Second Circuit proceeded to engage in its own historical analysis, supplemented by a concurrence by Judge Nathan that the court "fully join[ed]," Grant.Pet.App.33a, to arrive at the conclusion that unusually dangerous arms can be banned.

Before getting to the substance of the Second Circuit's analysis, it is important to note that the analysis was marked by significant methodological errors.

First, the court posited that "because the challenged statutes are state laws, the prevailing understanding of the right to bear arms in both 1791 … and 1868 … are relevant to our analysis."

Grant.Pet.App.36a. While this Court has not resolved whether the prevailing understanding in 1791 or 1868 controls, it has "made clear that individual rights enumerated in the Bill of Rights and made applicable against the States through the Fourteenth Amendment have the same scope as against the Federal Government." *Bruen*, 597 U.S. at 37. Thus, either 1791 or 1868 must control analysis of both federal and state laws under this Court's precedents. Of course, as *Bruen* acknowledged, this Court has "generally assumed that the scope of the protection applicable to the Federal Government and States is pegged to the public understanding of the right when the Bill of Rights was adopted in 1791." *Id.* (collecting cases).

Second, the court posited that "a nuanced analysis" was required "because the challenged legislation addresses novel societal problems stemming from newly developed technology." Grant.Pet.App.38a. The court pointed to mass shootings as such a problem. But *Heller* and *Bruen* both involved a "straightforward historical inquiry," *Bruen*, 597 U.S. at 27, not a more nuanced one, despite the issue of mass shootings being raised in both, *see, e.g.*, Br. of Violence Pol'y Ctr. et al. as Amici Curiae Supporting Pet'rs, 2008 WL 136348, at *24, *District of Columbia v. Heller*, No. 07-290 (Jan. 11, 2008); *Bruen*, 597 U.S. at 132 (Breyer, J., dissenting). Indeed, *Heller* involved the weapon of choice for mass shooters, the handgun. *See* Rosanna Smart, et al., *Mass Shootings in the United States*, RAND (updated Jan. 29, 2026), https://perma.cc/L7YX-BG4E). And *Bruen* involved carrying handguns in public, where the concern about mass shootings is most acute. Yet neither case required a nuanced analysis because of the existence of mass shootings.

The Second Circuit's assessment of dramatic technological change fares no better. AR-15 platform and similar semiautomatic rifles do represent a technological advance over Founding-era rifles, but they have been on the market for nearly sixty years, and they rely on semiautomatic technology that is over a hundred years old. And here, again, this case cannot require nuance when *Heller* and *Bruen* were straightforward, as the handguns at issue in those cases were just as different from Founding-era handguns as modern rifles are different from their Founding-era counterparts. *Cf. Snope*, 145 S. Ct. at 1534 (Kavanaugh, J., statement respecting denial of certiorari).

In any event, whether this case is categorized as straightforward or nuanced ultimately is of little moment. "The Court's note about the occasional need for a 'more nuanced approach' was an unremarkable observation that making comparisons to proper historical analogies might be challenging at times," *Duncan v. Bonta*, 133 F.4th 852, 910 (9th Cir. 2025) (en banc) (Bumatay, J., dissenting), not an invitation to fundamentally alter the analysis in cases concerning distinctly modern issues. *See also ANJRPC*, 183 F.4th at 246; J. Joel Alicea, Bruen *Was Right*, 174 U. PA. L. REV. 13, 32 n.144 (2025). And here, the common use principle itself accounts for social and technological changes resulting from advancements in firearms technology. The controlling question here is whether a given type of arm is "in common use *today*." *Bruen*, 597 U.S. at 47 (emphasis added). The inquiry therefore is one that accounts for the American people's judgment regarding what sorts of arms are appropriate for typical, lawful possession according to contemporary social and technological conditions. Any nuance required already is accounted for in the

controlling constitutional standard. *See*, Smith, *Common Use*, *supra* at 17.

3. The Second Circuit's historical analysis began with the practice of restricting the carrying of "dangerous and unusual weapons," but it drew the wrong lessons from that historical practice, by concluding that this tradition justifies banning "those arms that legislators determined were unusually dangerous because of their characteristics." Grant.Pet.App.31a.

As explained above, *Heller* stated that its holding that "the sorts of weapons protected were those in common use" was "fairly supported by the historical tradition of prohibiting the carrying of 'dangerous and unusual weapons.' " 554 U.S. at 627. Looking at the sources cited by *Heller* for this proposition, the Second Circuit noted that they "use a mix of 'dangerous or unusual' and 'dangerous and unusual' " to describe the weapons covered. Grant.Pet.App.70a (Nathan, J., concurring). But this variation does not support the conclusion that arms in common use can be banned if the government deems them unusually dangerous.

A principal primary source for the historical understanding of restrictions on carrying dangerous and unusual weapons is Serjeant William Hawkins' "widely read" Treatise on the Pleas of the Crown. *See Bruen*, 597 U.S. at 45. While *Heller*'s string cite on this issue did not include Hawkins, many of those sources themselves relied on his treatise. *See, e.g.*, 4 WILLIAM BLACKSTONE, COMMENTARIES ON THE LAWS OF ENGLAND 148 (1769); 3 B. WILSON, WORKS OF THE HONOURABLE JAMES WILSON 79 (1804). Hawkins' discussion of dangerous and unusual weapons is contained within his broader discussion of affrays. The word "affray," Hawkins explained, was "derived from the French

word" meaning "to terrify," and "in a legal Sense, it is taken for a publick Offence, to the Terror of the People." 1 WILLIAM HAWKINS, TREATISE ON THE PLEAS OF THE CROWN 134 (1716). As such, "there may be an Assault which will not amount to an Affray; as where it happens in a private Place," because in such a "Case it cannot be said to be to the Terror of the People." *Id.* While an affray typically involved some sort of "actual Violence," that was not always so, such as "where a Man arms himself with dangerous and unusual Weapons, in such a manner as will naturally cause a Terror to the People." *Id.* at 135. This behavior, Hawkins stated, was "said to have been always an Offense at Common Law, and is strictly prohibited by many Statutes," most prominently the 1328 Statute of Northampton. *Id.* Hawkins made clear, however, "that no wearing of Arms is within the meaning of this statute, unless it be accompanied with such Circumstances as are apt to terrify the People." *Id.* at 136. And from that, "it seems clearly to follow, that Persons of Quality are in no Danger of Offending against this Statute by wearing common Weapons … for their Ornament or Defence, in such Places, and upon such Occasions, in which it is the common Fashion to make use of them, without causing the least Suspicion of an Intention to commit any Act of Violence or Disturbance of the Peace." *Id.* As *Bruen* explains, the historical evidence indicates that "the founding generation" shared the understanding that the "*in Terrorem Populi*" element "require[d] something more than merely carrying a firearm in public." 597 U.S. at 50.

What should be immediately apparent from Hawkins' discussion is that the affray tradition was one principally regulating *public* conduct, not conduct in the home. Because the affray tradition concerned

public behavior, a person generally could commit a "dangerous and unusual weapons" offense in two ways: by carrying a weapon that was so dangerous and so unusual that its mere presence signified an intent to breach the peace, or by carrying a more common weapon in a manner that signified such an intent. With respect to the former, *Bruen* discusses launcegays, which in 14th Century England "were generally worn or carried only when one intended to engage in lawful combat or … to breach the peace." 597 U.S. at 41. With respect to the latter, a good illustration is provided by the North Carolina Supreme Court's decision in *State v. Huntly*, 25 N.C. 418 (1843). There, the court affirmed a conviction under the common law affray tradition against an individual who rode in public "armed with a double barrelled gun" while threatening to kill several fellow citizens. *Id*. at 419. In affirming the conviction, the court explained that "the carrying of a gun *per se* constitutes no offense. For any lawful purpose … the citizen is at perfect liberty to carry his gun." *Id*. at 422–23. But that did not authorize a citizen to carry a firearm "to terrify and alarm, and in such manner as naturally will terrify and alarm, a peaceful people." *Id*. at 423.

Perhaps the fact that an affray could sometimes be committed by behaving in a manner threatening to the public, even if the affrayer were doing so with a common weapon, explains why it was sometimes articulated as applying to either "dangerous and unusual" weapons or to "dangerous or unusual" weapons. This case, however, concerns a flat ban on possession *even in the home*. While *Heller* said that the tradition of banning dangerous and unusual arms "fairly supported" bans on mere possession, *see* 554 U.S. at 627, such a conclusion only makes sense as applied to arms

that are both highly dangerous *and* highly unusual. There is no basis for inferring an intent to commit violence—and therefore to terrify the public—from the simple possession in the home of a common firearm, especially when the constitution protects a fundamental right to keep and bear arms. *Cf. Simpson v. State*, 13 Tenn. 356, 360 (1833). *Heller* thus properly described unprotected arms as "highly unusual in society at large" and "not typically possessed by law-abiding citizens for lawful purposes." 554 U.S. at 625, 627. This conclusion is not based on a "first intuition about the word 'and,' " Grant.Pet.App.72a (Nathan, J., concurring), but rather on the foundational principles underlying the Second Amendment protected right.

4. Moving beyond the Founding era, the Second Circuit next pointed to laws "targeting unusually dangerous, novel, and concealable weapons, including uniquely configured dirk and Bowie knives." Grant.Pet.App.53a.

There are several problems with analogizing to these laws. First, these laws date, at the earliest, to 1837, *see* Kopel & Greenlee, *supra* at 296–327, which is too late to inform the understanding of the right that was enshrined in the Constitution in 1791. *See ANJRPC*, 183 F.4th at 231–32. "Post-ratification adoption or acceptance of laws that are *inconsistent* with the original meaning of the constitutional text obviously cannot overcome or alter that text." *Bruen*, 597 U.S. at 36 (quoting *Heller II*, 670 F.3d at 1274 n.6 (Kavanaugh, J., dissenting)).

Second, while many states enacted laws that restricted Bowie knives in some way, the restrictions were almost always less severe than the bans at issue here. "Most of those regulations prohibited the

concealed carry of Bowie knives, and some prohibited open carry with intent to do harm or imposed more stringent punishments where Bowie knives were used in the commission of a crime." *ANJRPC*, 183 F.4th at 244; *see id.* at nn.37–40 (collecting laws); *see also Teter v. Lopez*, 76 F.4th 938, 951–53 (9th Cir. 2023), *vacated as moot on reh'g en banc*, 125 F.4th 1301 (9th Cir. 2025). The Second Circuit cited a few restrictions that went further by restricting both open and concealed carry, placing a prohibitive tax on Bowie knives, or, in the case of one Tennessee law, "outright bann[ing] the sale of such weapons." Grant.Pet.App.55a–56a. But the 1837 Georgia law that the panel said "forbade the sale, possession, or carry of dirk and Bowie knives," Grant.Pet.App.56a n.37, exempted open carry of such weapons, 1837 Ga. Acts 90, § 4. And the rest were outliers that provide little insight into "the general understanding of [the] codified right." *Wolford*, 146 S. Ct. at 2050.

Third, the laws regulating the carry of Bowie knives are in the same vein as (and often are the same laws as) those regulating the carry of handguns that this Court found insufficient to support banning possession of handguns in *Heller* or restricting their public carry in *Bruen*. Take the Georgia law discussed above. Unlike Bowie knives, that law did ban carrying handguns both openly and concealed. And, in an opinion cited approvingly in *Heller*, it was held to be unconstitutional to the extent it banned open carry. *See Nunn v. State*, 1 Ga. 243, 251 (1846); *see also Heller*, 554 U.S. at 612. Additionally, laws that did restrict both open and concealed carry of Bowie knives similarly restricted the carry of handguns (with exceptions in Arkansas for types of handguns used in the military). *See* 1881 Ark. Acts 191; 1871 Tex. Gen. Laws

25, 25–27. If these laws were insufficient to justify New York's "good cause" requirement to carry handguns in public, *see Bruen*, 597 U.S. at 64–65 (rejecting the Texas law as an "outlier[]"); *id.* at 69 n.31 (citing Arkansas law), they must be insufficient to justify banning possession of an arm altogether.

Fourth, unlike AR-15 platform and similar semiautomatic rifles, it is not clear that Bowie knives *were* "in common use" at the time they were banned. *See United States v. Bridges*, 150 F.4th 517, 537 (6th Cir. 2025) (quotation marks omitted) (Nalbandian, J., concurring in part and concurring in the judgment). To the extent laws restricting Bowie knives or other arms were examined by courts at the time and held to be constitutional, it generally was because courts "tracked a distinction we've seen before: that between dangerous and unusual weapons and common weapons." *Bianchi v. Brown*, 111 F.4th 438, 510 (4th Cir. 2024) (Richardson, J., dissenting). Assessing four such cases from Texas, Arkansas, and Tennessee, Judge Richardson noted that "all four courts assessed the challenged statutes according to the same principle. Each of them determined whether the regulated weapon was in common use for lawful purposes. If it was, then they held that the government could regulate the possession or carry of that weapon, but that it could not completely ban it." *Id.* (discussing *State v. Duke*, 42 Tex. 455, 456–59 (1875); *Fife v. State*, 31 Ark. 455 (1876); *Andrews v. State*, 50 Tenn. 165 (1871); and *Aymette v. State*, 21 Tenn. 154 (1840)).

5. The Second Circuit finally turned for support to "twentieth-century regulation of automatic and semiautomatic weapons." Grant.Pet.App.58a. But semiautomatic restrictions were exceedingly rare, were, in

the few cases in which they amounted to an actual ban, restrictions on *capacity*, not on semiautomatic firearms themselves, and were short lived. *See supra* at 7–8. Furthermore, these laws, which all post-date the New York law held unconstitutional in *Bruen*, are far too late to inform our understanding of the scope of the Second Amendment protected right to keep and bear arms, especially in light of the total lack of support for the Second Circuit's principle at any earlier period in our history.

6. For these reasons, the Second Circuit's attempt to find historical support for banning "unusually dangerous" weapons fails. But even if it succeeded, that would not change the outcome of this case. As an initial matter, because the banned rifles are in *common* use, they are not *unusually* dangerous. They also are not inherently more dangerous than other comparable firearms. "AW-type firearms do not operate differently than other semiautomatics, nor do they fire more lethal ammunition." Christopher S. Koper, *Assessing the Potential to Reduce Deaths and Injuries from Mass Shootings Through Restrictions on Assault Weapons and Other High-Capacity Semiautomatic Firearms*, 19 CRIM. & PUB. POL'Y 147, 149 (2020). To the extent the features singled out by Connecticut and Cook County—such as pistol grips, thumbhole stocks, and telescoping stocks—make a difference, they do so by promoting accuracy and therefore safety in using a firearm, not danger. There is no historical warrant for considering firearms with accuracy enhancing features to be unusually dangerous. In any event, "whatever the reason," the people of this Nation overwhelmingly choose AR-15 platform and similar semiautomatic rifles for ordinary and lawful uses and,

therefore, "a complete prohibition of their use is invalid." *Heller*, 554 U.S. at 629.

CONCLUSION

This Court should reverse the decisions below and remand with instructions that judgment be entered for Petitioners in both cases.

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